

HOUSE BILL 1905

By Terry

AN ACT to amend Tennessee Code Annotated, Title 49
and Title 63, relative to nursing.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 63, Chapter 7, is amended by adding the following as a new part:

63-7-501. Short title.

This act is known and may be cited as the "Tennessee Nursing Education Integrity and Oversight Act."

63-7-502. Legislative findings.

The general assembly finds and declares that:

- (1) The safety, efficacy, and quality of nursing education directly affect healthcare outcomes for the citizens of this state;
- (2) A significant number of out-of-state nursing education programs currently place students for clinical experiences in this state without adequate oversight or accountability;
- (3) The board of nursing must have sufficient capacity to effectively evaluate and monitor all nursing programs seeking approval, especially those located outside this state;
- (4) Enhanced monitoring and comprehensive data tracking are essential to ensure the integrity of clinical preceptorship within this state; and
- (5) A temporary moratorium is necessary to allow state agencies, including the Tennessee center for nursing advancement and the board of

nursing, to develop and implement improved standards and reporting procedures for out-of-state nursing programs.

63-7-503. Part definitions.

As used in this part:

- (1) "Board" means the board of nursing;
- (2) "Center for nursing advancement" or "center" means the Tennessee center for nursing advancement created by § 49-8-502; and
- (3) "Program based in this state" means a nursing education program that maintains a physical campus or facility located in this state that has a minimum of three (3) full-time faculty members on-site who are assigned to the nursing degree program who are each licensed, registered, or certified or eligible for licensure, registration, or certification pursuant to this chapter.

63-7-504. Temporary moratorium on approval of out-of-state programs.

(a) There is established, and the board shall implement, a moratorium on the acceptance and approval of applications from nursing education programs located outside of this state that seek approval from the board to operate, enroll students, or place students for clinical experiences within this state.

(b) The moratorium begins on the effective date of this act and ends two (2) years after the effective date of this act.

(c) Except as provided in subsection (d), the moratorium applies to any nursing education program that is not a program based in this state.

(d) A nursing program that is not a program based in this state, but that has been approved by the board prior to the effective date of this act, retains its approval status during the moratorium period. However, such program shall submit all data or

information requested by the board and the center, including, but not limited to, preceptor lists, student placement statistics, and program outcomes.

63-7-505. Development of standards for out-of-state programs.

(a) The center for nursing advancement, in collaboration with the board, shall develop and recommend new standards for the approval of nursing education programs that are not programs based in this state that utilize Tennessee-licensed preceptors or clinical sites located within this state.

(b) The center shall ensure that the following topics are considered and addressed when developing the new approval standards:

- (1) Verification and licensure of all preceptors used in this state;
- (2) Verification of Tennessee residents enrolled in nursing programs;
- (3) Annual reporting requirements for out-of-state programs, including student placement numbers, preceptor utilization, faculty oversight, and student outcomes;
- (4) Minimum standards for faculty supervision and clinical oversight;
- (5) Data collection requirements for tracking clinical placements in this state;
- (6) Administrative costs required by the board to evaluate, monitor, and process matters related to out-of-state programs; and
- (7) Mechanisms for ensuring educational equivalency and protection of Tennessee patients and preceptors.

(c) No later than June 30, 2027, the center shall publish a report containing the recommended standards and deliver a copy of the report to the chief clerk of the senate, the chief clerk of the house of representatives, the legislative librarian, and the board.

(d) In addition to the report required by subsection (c), no later than June 30 of each year, the center shall publish and make publicly available an annual report detailing the activities of, findings about, and oversight of out-of-state programs that utilize clinical sites in this state.

63-7-506. Board authority not affected.

This part does not limit the authority of the board to enforce this chapter during the moratorium period, or to enforce compliance with § 63-7-504(d).

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.